

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY2GO CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

DOCKET NO. 25-14

Served: January 6, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER DENYING AMENDED MOTION TO ISSUE SUBPOENAS TO NON-PARTIES WITHOUT
PREJUDICE**

For the reasons discussed, the Complainant's Amended Motion to Issue Subpoenas to Non-Parties ("AMIS") is **DENIED WITHOUT PREJUDICE** as it appears that the AMIS was based on a misunderstanding of the Commission's procedural rules.

By way of background, Complainant filed a Complaint against Respondent alleging that Respondent is in violation of 46 U.S.C. § 40901(a) for acting as an ocean transportation intermediary ("OTI") without a license from the Commission.

On January 2, 2026, Complainant filed a Motion to Issue Subpoenas to Non-Parties ("MIS"), and attached nine proposed subpoenas.

On January 5, 2026, the Office of Administrative Law Judges emailed Complainant's counsel instructions on how to correct its proposed subpoenas to conform to Commission practice.

On January 5, 2026, Complainant filed the AMIS.

On January 6, 2026, Respondent filed Respondent Oak Way Cargo, LLC's Opposition to Complainant Way2go Cargo, Corp.'s Amended Motion to Issue Subpoenas to Non-Parties ("AMIS Opp."). In short, Respondent argues that there is ongoing litigation between these parties in state and federal court, and that these subpoenas are not issued in good faith. (*See id.*). In addition, Respondent argues that a federal court recently granted a motion to quash similar subpoenas after an evidentiary hearing was already conducted. (*See* AMIS Opp., at Ex. 6).

Under Commission Rule 131, a motion is not necessary for the issuance of a subpoena. (46 C.F.R. § 502.131). Instead, a subpoena is issued "upon request of any party" to the Office of Administrative Law Judges ("OALJ"), "without notice to any other party." (*Id.*). In other words, an *ex parte* request is made of the OALJ. The administrative law judge, who has the authority to

sign and issue subpoenas (*see* 46 C.F.R. § 502.25(b)(1)), has discretion to require a showing that the subpoena is reasonable. (46 C.F.R. § 502.131).

Here, in light of the allegations in the Complaint, Complainant may reasonably conduct discovery regarding whether Respondent is acting as an OTI, meaning either as an ocean freight forwarder (“OFF”) or a non-vessel operating common carrier (“NVOCC”). (46 U.S.C. § 40102(20)).

An OFF is a person that, “in the United States, dispatches shipments from the United States via a common carrier and books or otherwise arranges space for those shipments on behalf of shippers;” and “processes the documentation or performs related activities incident to those shipments.” (46 U.S.C. § 40102(19)).

An NVOCC is defined as a common carrier that does not operate the vessels by which the ocean transportation is provided, and “is a shipper in its relationship with the ocean carrier.” (46 U.S.C. § 40102(17)). In turn, a common carrier is:

a person that—

- (i) holds itself out to the general public to provide transportation by water of passengers or cargo between the United States and a foreign country for compensation;
- (ii) assumes responsibility for the transportation from the port or point of receipt to the port or point of destination; and
- (iii) uses, for all or part of that transportation, a vessel operating on the high seas or the Great Lakes between a port in the United States and a port in a foreign country. . . .

(46 U.S.C. § 40102(7)). A shipper is a cargo owner, the person for whose account the ocean transportation of cargo is provided, the person to whom delivery is to be made, a shippers’ association, or an NVOCC that accepts responsibility for payment of all charges applicable under the tariff or service contract. (46 U.S.C. § 40102(23)).

Whether an entity is an OTI is a fact-intensive inquiry. (*Crocus Investments, LLC v. Marine Transportation Logistics, Inc.*, Dkt. No. 15-04, 2019 WL 4734299 (FMC Jul. 16, 2019); *see also Worldwide Relocations, Inc., Possible Violations of Sections 8, 10, and 19 of the Shipping Act of 1984 As Well As The Commission’s Regulations at 46 C.F.R. 515.13, 515.21, and 520.3*, Dkt. No. 06-01, 2012 WL 11914713, at *5 (FMC, Mar. 15, 2012)).

Reviewing the subpoenas for reasonableness (which happens regardless of a motion, *see* Commission Rule 131), they appear to be aimed at discovering whether Respondent was acting as either an OFF or NVOCC. The subpoenas ask for “Documents prepared or received by you concerning shipments . . .”, “Communications . . . concerning booking, arrangement, payment for, or execution of shipments. . .”, “Records concerning payments. . . related to any shipment . . .”, “Documents prepared or received by you including Way2Go’s Federal Maritime Commission (FMC) license number . . .”, “Written agreements . . . that describe any services provided . . .”

and “Documents sufficient to show Automated Manifest System (AMS) filings” Therefore, the subpoenas appear to be reasonable in light of the allegations in the Complaint.

My issuance of the subpoenas does not deprive the third parties of their right to move to quash or seek a protective order. (*See* 46 C.F.R. §§ 502.132, 502.141(j)).

Therefore, because the AMIS was procedurally unnecessary, the AMIS is **DENIED WITHOUT PREJUDICE**. The subpoenas will be signed contemporaneously with the issuance of this Order.

Richard C. Ambrow Jr -S

Richard Ambrow
Administrative Law Judge